

Court No. - 39

Case :- WRIT - C No. - 3927 of 2019

Petitioner :- Dharmendra Sharma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ashok Kumar

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Ashok Kumar, learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for the respondents no.2&3 and the learned Standing Counsel for Respondents no. 1, 4 and 5.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 10.09.2018 whereby a sum of Rs. 9,38,163/- is sought to be recovered from the petitioner towards electricity dues.

It is stated that an inspection was made by the Electricity Department in the premises of the petitioner where he was found using electricity unauthorizedly without any connection and thereafter a First Information Report has been lodged against the petitioner, copy of which has been filed as Annexure no.4 to the writ petition.

According to the petitioner, the electricity dues are chargeable from the M/s Reliance Tower Ltd. and not against him.

Since this is a matter of theft, in our opinion, the petitioner has a remedy under Clause 6.8 of the Electricity Supply Code, 2005 by approaching the Executive Engineer, 3/11 K.V. Up Kendra, Jangipur, Ghazipur-respondent no.3.

This writ petition is, therefore, **disposed of** with a direction that if the petitioner appears before the respondent no. 3-Executive Engineer, 3/11 K.V. Up Kendra, Jangipur, Ghazipur **on 13.02.2019 at 11:00 a.m.** along with certified copy of this order as well as his representation/objection, the respondent no.3 shall hear the petitioner and decide the representation/objection of the petitioner, in accordance with law, within a further period of fifteen days.

Subject to the petitioner complying with the direction given hereinabove, the recovery in pursuance of the recovery citation dated 10.09.2018 shall remain in abeyance and shall be subject

to any final order which may be passed by the respondent no.3.

It is made clear that the court has not adjudicated the claim of the petitioner on merit.

Order Date :- 5.2.2019

JK Yadav